

Work Made for Hire Agreement

Transfer of ownership in work Luwah Technologies creates for a client

Agreement Summary

Agreement No.	[WFH-YYYY-NN]
Client	[Client legal name and entity type]
Project	[Project name]
Related documents	[MSA-YYYY-NN and SOW-YYYY-NN, or proposal dated Month DD, YYYY, or None]
Effective Date	[Month DD, YYYY]
Total value	[Total fee for the Project]

Template v1.0, 2026-09-18. Replace every bracketed field, fill or delete every schedule, and delete this note before sending. The signed document governs, not this template.

This Work Made for Hire Agreement (the "Agreement") is between the client named in the Agreement Summary above ("Client") and Luwah Technologies LLC, a Colorado limited liability company ("Provider"). Client has engaged Provider to create the work described in Exhibit A (the "Project"). The Parties intend that Client will own the results of the Project on the terms below.

Use this Agreement when a client wants a standalone, project-specific transfer of ownership, or when no Master Services Agreement is in place. Where a Master Services Agreement is in place, this Agreement controls ownership of the Project's Work Product and the Master Services Agreement controls everything else.

1. Definitions

- 1.1 "Work Product"** means all deliverables, code, workflows, configurations, designs, content, documentation and other material Provider creates for Client in the Project, including drafts and versions, but excluding Background IP, Client Materials and third-party components.
- 1.2 "Background IP"** means tools, code, libraries, templates, workflows, methods, know-how and documentation that Provider created or acquired outside the Project, or creates during the Project for general use rather than specifically for Client, and any improvements to them. Exhibit B lists the Background IP known at signing. Background IP that is not listed is still Background IP.
- 1.3 "Client Materials"** means the data, content, credentials, accounts, systems and other material Client provides to Provider.

- 1.4 **"Confidential Information"** means non-public information one Party discloses to the other that is marked confidential or that a reasonable person would treat as confidential.

2. Project and Compensation

- 2.1 Provider will create the Work Product described in Exhibit A.
- 2.2 Client pays the fee stated in Exhibit A on the schedule stated there. If a Master Services Agreement and Statement of Work cover the Project, their payment terms apply instead.
- 2.3 Ownership transfers under Section 3 only when Client has paid in full.

3. Ownership of Work Product

- 3.1 **Work made for hire.** The Parties agree that the Work Product is specially ordered or commissioned by Client and is a "work made for hire" under the United States Copyright Act, 17 U.S.C. § 101, to the fullest extent the law allows.
- 3.2 **Assignment.** To the extent any Work Product does not qualify as a work made for hire, Provider irrevocably assigns to Client, effective when Client pays in full, all right, title and interest in the Work Product worldwide, including all copyrights, and any patent, trademark and trade secret rights in it, together with the right to sue for past and future infringement.
- 3.3 **Moral rights.** To the extent the law allows, Provider waives, and agrees not to assert against Client or its successors, any moral rights in the Work Product.
- 3.4 **Further assurances.** Provider will sign any document and take any lawful step Client reasonably requests, at Client's expense, to record or perfect Client's ownership.
- 3.5 **Before payment in full.** Until Client pays in full, Provider owns the Work Product and Client may use it only to review it. If Client does not pay in full, no transfer occurs, and Client must stop using and delete the Work Product on Provider's written request.
- 3.6 **Client's use after transfer.** After the transfer, Client may use, modify, and distribute the Work Product without restriction, subject to Section 4 for Background IP and third-party components.

4. Background IP and Third-Party Materials

- 4.1 **Reservation.** Provider keeps ownership of all Background IP, including the items listed in Exhibit B.
- 4.2 **License.** Where Background IP is incorporated into the Work Product, Provider grants Client a perpetual, worldwide, non-exclusive, royalty-free license, irrevocable once Client has paid in full, to use, copy, modify and distribute that Background IP as part of the Work Product for Client's business purposes. Client may transfer this license with the

Work Product to a successor or acquirer of Client's business. Client may not sell or license the Background IP on its own.

4.3 Open source and third-party components. The Work Product may include open source or third-party components. Those components remain subject to their own licenses, which Provider will identify on request. Provider will not include a component whose license would require Client to publish Client's own source code without Client's written approval.

4.4 Reuse. Provider may reuse its Background IP, and the general skills, knowledge, patterns and techniques it gains in the Project, for other clients, provided Provider does not use or disclose Client Confidential Information or the Work Product itself.

5. Client Materials

5.1 Client keeps all rights in Client Materials. Client grants Provider a non-exclusive license to use Client Materials only to perform the Project.

5.2 Client warrants that it has the rights needed to give the Client Materials to Provider for the Project and that their use in the Project will not infringe a third party's rights.

6. Provider's Representations

6.1 Provider has the right to enter this Agreement and to grant the rights in it, and no other agreement conflicts with it.

6.2 The Work Product is Provider's original work, except for Background IP, Client Materials and third-party components identified under Section 4.3, and to Provider's knowledge does not infringe any third party's intellectual property rights.

6.3 Provider has obtained, or will obtain before delivery, from any subcontractor who contributes to the Work Product a written assignment sufficient to give Client the rights in this Agreement.

6.4 Provider may use AI-assisted tools in creating Work Product. Provider applies human authorship, review, selection and arrangement to all Work Product and remains responsible for it. Provider will not submit Client Confidential Information to an AI tool that trains on submitted data. Client acknowledges that the copyright status of material generated by an AI tool without human authorship is unsettled, and that Provider does not warrant copyright protection for any such portion.

7. Confidentiality

7.1 Each Party will use the other Party's Confidential Information only for the Project, will protect it with reasonable care, and will not disclose it to anyone other than its

employees, contractors and advisers who need to know it and are bound by written confidentiality obligations.

- 7.2** These obligations do not apply to information that is or becomes public through no fault of the receiving Party, that the receiving Party already knew or lawfully receives without a duty of confidence, or that the receiving Party develops independently. A Party may disclose Confidential Information when the law requires, after prompt notice where lawful.
- 7.3** These obligations last for 3 years after the Project ends, and for trade secrets and credentials for as long as they remain a trade secret or active. If a non-disclosure agreement or Master Services Agreement between the Parties is in force, its confidentiality terms apply in addition, and the more protective term controls.

8. Portfolio and Credit

- 8.1** Provider may name Client and describe the general nature of the Project in Provider's portfolio and marketing only with Client's prior written consent, which may be given by email, and without disclosing Confidential Information. Client may withdraw consent at any time by written notice.

9. Relationship of the Parties

- 9.1** Provider is an independent contractor. Provider controls the manner and means of performing the Project. Nothing in this Agreement creates a partnership, joint venture, employment or agency relationship, and neither Party may bind the other.

10. Warranty and Limitation of Liability

- 10.1** If a Master Services Agreement between the Parties covers the Project, its warranty and limitation of liability terms apply and this Section does not.
- 10.2** Otherwise, for 30 days after delivery, Provider warrants that the Work Product will materially conform to Exhibit A. Client's sole remedy is that Provider will correct the non-conformance at no charge within a reasonable time or, if Provider cannot, refund the fee paid for the non-conforming part. Except as stated in this Section and Section 6, Provider provides the Work Product as is and disclaims all other warranties, express or implied, including merchantability, fitness for a particular purpose and non-infringement.
- 10.3** Otherwise, Provider will defend Client against any third-party claim that the Work Product, as delivered and used as this Agreement permits, infringes that third party's copyright, trademark or trade secret, and Client will defend Provider against any third-party claim arising from Client Materials or from Client's use of the Work Product in a way this Agreement does not permit. In each case the defending Party pays the damages

and costs a court finally awards or a settlement it agrees to, the other Party gives prompt notice and control of the defence, and Provider's defence does not cover Client Materials, third-party components used as their licenses allow, or changes made by anyone other than Provider.

- 10.4** Neither Party is liable to the other for indirect, incidental, special, consequential or punitive damages, or for lost profits, revenue, data or business opportunity. Each Party's total liability arising out of this Agreement is limited to the fees paid under it. These limits do not apply to a breach of Section 7, to Client's payment obligations, to a Party's defence obligations under Section 10.3, or to a Party's gross negligence, fraud or willful misconduct.

11. Term and Termination

- 11.1** This Agreement starts on the Effective Date and ends when the Project is complete and Client has paid in full, unless ended earlier under this Section.
- 11.2** Either Party may terminate this Agreement with 14 days' written notice. Client pays for all work performed to the termination date. Section 3 applies to the Work Product completed to that date once that payment is made.
- 11.3** Sections 3, 4, 6, 7, 8, 10 and 12 survive termination.

12. General

- 12.1 Governing law and disputes.** The law of the State of Colorado governs this Agreement. The Parties will first negotiate any dispute in good faith for 30 days, then mediate in Arapahoe County, Colorado or by video conference with a mediator they agree on, sharing the mediator's fees equally. If mediation fails, either Party may bring the dispute in the state or federal courts located in Arapahoe County, Colorado, and each Party submits to their jurisdiction. Either Party may seek an injunction in any court to protect its Confidential Information or intellectual property without first negotiating or mediating. The prevailing Party may recover its reasonable attorneys' fees and costs.
- 12.2 Notices.** Notices must be in writing and sent by email to the address in the signature block. A notice of breach or termination must also be sent by courier or certified mail to the notice address in the signature block. Email notice is effective on the next business day after sending, unless the sender receives a delivery failure. A Party may change its notice address by notice under this Section.
- 12.3 Entire agreement and precedence.** This Agreement and its Exhibits are the entire agreement between the Parties about ownership of the Work Product. Where a Master Services Agreement or Statement of Work between the Parties also covers the Project,

this Agreement controls ownership of the Project's Work Product, and those documents control all other matters.

12.4 Amendment and assignment. Changes must be in writing and signed by both Parties. Provider may not assign this Agreement without Client's written consent. Client may assign this Agreement, with the Work Product, to a successor or acquirer of its business on written notice.

12.5 Severability, counterparts and electronic signature. If a court finds a term unenforceable, the court will limit it to the minimum extent needed and the rest of this Agreement stays in effect. This Agreement and any document signed under it may be signed in counterparts and electronically. An electronic or scanned signature has the same effect as an original.

12.6 Headings and independent advice. Headings are for convenience only and do not affect interpretation. Each Party has had the opportunity to obtain independent legal advice before signing.

Signatures

Each Party signs below to agree to these terms. An electronic signature has the same effect as an original.

Provider	Client
Signature: _____	Signature: _____
Name: Daniel Cooke	Name: [Signer name]
Title: Founder	Title: [Signer title]
Email: hello@luwahtechologies.com	Email: [Signer email]
Date:	Date:
Notice address: [Provider notice address]	Notice address: [Client notice address]

Exhibit A: Project Description

Describe the Project in enough detail that a third party could tell what is and is not Work Product. Where a Statement of Work exists, reference it and attach it rather than repeating it.

Project name	[Project name]
Related SOW or proposal	[SOW-YYYY-NN, or proposal dated Month DD, YYYY, or None]
Description	[What Provider will create, for what purpose, on which platforms]
Delivery date	[Month DD, YYYY]
Total fee (USD)	[Amount]
Payment schedule	[50% on signing, 50% on delivery, or per the SOW]

Deliverables

No.	Deliverable	Description	Delivery date

Exhibit B: Provider Background IP

List every item of Provider Background IP expected to be incorporated in the Work Product. This schedule is mandatory. If nothing applies, write NONE in the first row. The example rows are Provider's usual reusable assets and must be edited before sending.

Item	Description	Where it is used	License to Client
n8n workflow library	Reusable sub-workflows and patterns for error handling, notification, deduplication and scheduling	Automation deliverables	Section 4.2
Web starter and components	Next.js site starter, layout components, design tokens, forms and deployment configuration	Website deliverables	Section 4.2
Operations scripts	Backup, monitoring, deployment and health-check scripts and templates	Hosting and maintenance deliverables	Section 4.2
[Item]	[Description]	[Where used]	Section 4.2